

Trapped by Design: Passport Confiscation and the Failure of Migrant Protections

The International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families (CMW, 1990) stands as one of the most comprehensive international treaties for the protection of migrant workers. Despite its breadth, migrant workers worldwide continue to face violations of rights that the CMW explicitly protects. Among these are the confiscation of passports and exploitative overcharging by recruitment intermediaries—clear infringements of Article 21 of the Convention, which forbids the destruction or retention of identity documents without lawful authorization. Yet in practice, migrant workers around the world routinely have their passports seized by employers or recruiters and fall prey to exploitative recruitment schemes that indebt and immobilize them. In this paper, I argue that passport confiscation and abusive recruitment are pervasive violations of migrant rights that persist despite Article 21's protections, due to structural factors in migration regimes. Focusing on two cases – Indonesian domestic workers in Hong Kong and migrant laborers in Saudi Arabia – the discussion will illustrate how these practices violate CMW norms and why they endure. Drawing on theoretical insights from Ruhs (2013), De Genova (2002), Constable (2022), and Mongia (2018), the essay analyzes the political-economic and historical forces that create a gap between migrants' theoretical rights and their lived reality. The scope is limited to passport retention and recruitment abuse as emblematic issues under Article 21, recognizing that these are part of broader patterns of

migrant exploitation. To do so, I will first contextualize the CMW's framework, then examines the two empirical examples, followed by an analysis of the persistence of these rights violations through key theoretical lenses before concluding with potential solutions to better align migration governance with the CMW's principles.

The CMW was intended to harmonize migrant rights globally, offering a “comprehensive set of rights” to migrant workers and their families. Importantly, its provisions apply to all migrants, regardless of legal status. Among its key provisions, Article 21 of the Convention addresses a common tool of exploitation: the unauthorized retention, confiscation, or destruction of migrants' identity documents. This protection is critical because identity documents, especially passports, function as both enablers of movement and instruments of control. They can offer migrants access to employment and mobility, yet they can also become tools through which states, employers, and intermediaries constrain and exploit workers.

Despite the Convention's robust standards, its impact has been limited by poor uptake and enforcement. Notably, most major migrant-destination countries have *not* ratified the CMW – for example, Saudi Arabia, other Gulf states, and Hong Kong (via China) remain outside the treaty's jurisdiction. This means that the very states where abuses like passport confiscation are rife are not legally bound by the CMW's provisions. Even in countries that have ratified (largely labor-sending countries in Asia, Africa, and Latin America), enforcement is challenging once their nationals migrate abroad. The result is a stark “implementation gap”: on paper, instruments like Article 21 recognize migrant workers as rights-holders, but in practice those rights often exist only

theoretically. Migrant domestic workers and other low-wage laborers are frequently *invisible* to authorities – hidden in private homes or labor camps – which enables violations such as document seizure or illegal fees to go unchecked.

Two case studies—Indonesian domestic workers in Hong Kong and migrant laborers in Saudi Arabia—highlight how passport confiscation and recruitment exploitation operate in practice.

Constable’s ethnography of Indonesian domestic workers in Hong Kong vividly illustrates how passport-related rights violations operate in practice. She explains that profit-seeking recruitment agencies in Indonesia collude with officials to produce genuine passports with fake details, thus enabling young women to circumvent restrictions and work abroad—but this very process “facilitates the control and exploitation of workers” from the outset (Constable, 2022, p. 5). The passport, rather than protecting the worker, becomes an instrument of leverage for those in power (Constable, 2022, p. 58). Upon arrival in Hong Kong, Indonesian domestic workers are often trapped in debt bondage to the agencies that placed them. It is standard practice for placement agents or loan sharks to seize the worker’s passport and even bank cards, and to claim the majority of her salary for the first 6–7 months as repayment for recruitment fees (Constable, 2022, p. 59). This is a direct violation of Article 21—the agents are not public officials and have no legal authority to hold these documents—yet it is pervasive.

On one hand, passports facilitate the domestic workers’ employment (enabling their travel and legal entry), and agencies and officials claim to care for the workers by handling their documents and compliance. However, Constable argues that “control does not always mean care,”

and what is portrayed as protective custody of the passport is in reality a means of surveillance and coercion (Constable, 2022, p. 6). The worker, deprived of her passport, is effectively unable to leave the country or even switch employers without permission—she is under the total “care” (or custody) of others (Constable, 2022, p. 78). The author’s interlocutors described how they had long been reassured that there was “nothing wrong” with their *aspal* passports, only to later find themselves criminalized (Constable, 2022, p. 3). Several Indonesian domestic workers were even jailed in Hong Kong for possessing improper documents. Here we see the cruel paradox: measures purportedly meant to protect migrant women (new passports, stricter documentation) ended up punishing them.

The kafala system in Saudi Arabia institutionalizes practices like passport confiscation, perpetuating migrant vulnerability and dependency. In Saudi Arabia, migrant workers make up the vast majority of the private-sector workforce (around 80%) (Human Rights Watch, 2024) and are employed under the notorious kafala sponsorship system. The kafala framework gives Saudi employers (*kafeel*) sweeping control over foreign workers’ legal status: a migrant’s visa and residency are tied to their employer, and traditionally workers could not change jobs or leave the country without the sponsor’s permission. Passport confiscation has been at the core of this system. The worker fears that fleeing an abusive situation will render them undocumented (“absconding” is criminalized) and subject them to detention or deportation. This climate of fear is not accidental but systemic (De Genova, 2002, p. 422).

It must be noted that Saudi Arabia has not ratified the CMW, and thus does not formally recognize the authority of Article 21. Nonetheless, as a UN member state, it faces international

pressure to uphold basic human rights for migrants. Officially, Saudi labor regulations have at times outlawed passport retention: in 2021, Saudi Arabia introduced limited labor reforms allowing some workers to request exit and job transfer through an online system. In reality, migrants still need government approval to finalize an exit, and many categories of workers -especially domestic workers - were initially excluded from these changes. The Saudi case exemplifies the challenges in enforcing Article 21's principle: the practice is so common and the dependency so engineered by the sponsorship system that rights on paper mean little on the ground (Mongia, 2018, p. 29).

To bridge the gap between the CMW's normative protections and the lived realities of migrant workers, several strategies must be pursued.

First, international enforcement mechanisms must be strengthened. A crucial step is encouraging more destination countries to ratify the CMW and adhere to its provisions. While this is challenging given many have resisted, reflecting Ruhs' trade-off logic (Ruhs, 2013, p. 27-30), global pressure can make a difference. Moreover, linking labor rights to trade agreements or development aid is another lever; destination states might be persuaded to improve practices if there are diplomatic or economic incentives. Although sovereignty concerns make enforcement tricky, framing document confiscation as part of the spectrum of modern-day forced labor can activate efforts by the International Labour Organization, which has supervisory systems that, although not punitive, add reputational pressure.

Second, international cooperation must be expanded. Labor sending and receiving states could negotiate bilateral labor agreements that include explicit protections and establish

monitoring and complaint mechanisms. Labor brokerage systems should not only streamline migration but also prioritize migrants' rights. Sending countries can also cooperate with each other and through regional blocs (like ASEAN) to set common standards, reducing the “race to the bottom” in rights. This way, they can pressure receiving countries to reform: by presenting a united front and threatening to impose joint labor bans, “destination” states cannot simply shift to a more acquiescent labor source.

Bridging the gap also requires bottom-up action. Migrant workers need accessible channels to seek help without fear: helplines, migrant resource centers, and legal aid clinics can provide lifelines for workers whose documents have been taken (Constable, 2022, p. 59). Alternatively, media reporting and public awareness campaigns can erode the social acceptability of practices like passport confiscation and create visibility - the more these hidden abuses are dragged into the open, the more pressure for change.

Finally, challenging the ideology of control is essential. As Mongia’s work reminds us, the issue is partly that states and societies view migrant workers as outsiders to be controlled, rather than as equals (Mongia, 2018, p. 29). Education and advocacy must reinforce that migrants’ rights are human rights. The CMW itself, although under-utilized, is a powerful affirmation that migrants are entitled to the same respect and dignity as anyone else, including the basic right to keep one’s identity documents.

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Bibliography

- Constable, Nicole. *Passport Entanglements: Protection, Care, and Precarious Migrations*. University of California Press, 2022.
- De Genova, Nicholas. “Migrant ‘Illegality’ and Deportability in Everyday Life.” *Annual Review of Anthropology* 31 (2002): 419–447.
- Human Rights Watch. *Saudi Arabia: Labor Reforms Fall Short*. Human Rights Watch, 2024.
- Mongia, Radhika. *Indian Migration and Empire: A Colonial Genealogy of the Modern State*. Duke University Press, 2018.
- Ruhs, Martin. *The Price of Rights: Regulating International Labor Migration*. Princeton University Press, 2013.
- United Nations General Assembly. *International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families*. 1990.